

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

SUMMONS

-----X
Ernst Milord,

Plaintiff,

- against-

The City Of New York, Luis Ramirez, Shield No. 8533, and John
Does #1-4,

Defendants.
-----X

Index No.:

Plaintiff designates
Kings County as the
place of trial

The basis of venue is:
The situs of occurrence

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, to, if the complaint is not served with the summons, to serve a notice of appearance, on the plaintiff's attorneys within twenty (20) days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: New York, New York
August 23, 2021

The nature of this action is for violation of Plaintiff's Civil and Constitutional Rights.
The relief sought is monetary damages.

LIAKAS LAW, P.C.



BY: Nicholas Mindicino, ESQ.

Attorney for Plaintiff

65 Broadway, 13th Floor
New York, N.Y. 10006
(212) 937-7765

If you fail to respond, judgment will be entered against you, by default, with interest from Apr 9, 2021.

Defendants:

City of New York
Office of the Corporation Counsel
100 Church Street
New York, New York 10007

Officer Luis Ramirez, Shield No. 8533
NYPD 70th Precinct
154 Lawrence Ave
Brooklyn, NY 11230

SUPREME COURT OF THE STATE OF NEW YORK
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Ernst Milord,

Plaintiff,

- against-

VERIFIED COMPLAINT

The City Of New York, Luis Ramirez, Shield No. 8533,
and John Does #1-4,Defendants.
-----X

Plaintiff, by his attorneys, LIAKAS LAW, P.C., as and for this Complaint, alleges as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action in which plaintiff seeks relief through 42 U.S.C. §1983 and the laws of the State of New York for the violation of his right to be Free of Unreasonable Search and Seizure under the United States Constitution.

2. The claim arises from an April 9, 2021 incident in which Officers of the New York City Police Department ("NYPD"), acting under color of state law, intentionally and willfully subjected plaintiff to false arrest, assault, battery, and use of excessive force.

3. Plaintiff seeks monetary damages (special, compensatory, and punitive) against defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court deems just and proper

NOTICE OF CLAIM AND VENUE

4. Within 90 days of the incidents alleged in this complaint, Plaintiff served upon Defendant, City of New York, a Notice of Claim setting forth the name and post office address of

Plaintiff, the nature of the claim, the time when, the place where and the manner in which the claim arose, and the items of damages or injuries claimed.

5. More than 30 days have elapsed since Plaintiff's Notice of Claim was served on Defendant.

6. Venue is proper in the Supreme Court of the State of New York, Kings County, because the acts in question occurred in the State of New York, Kings County, and the City of New York is subject to personal jurisdiction in the Supreme Court of the State of New York, Kings County.

PARTIES

7. Plaintiff, Ernst Milord (hereinafter "Plaintiff"), is a legal resident of the United States, residing in Kings County, State of New York.

8. The City of New York (or "the City") is a municipal corporation organized under the laws of the State of New York. At all times relevant hereto, Defendant City, acting through the New York Police Department (or "NYPD"), was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel. In addition, at all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.

9. Defendant Luis Ramirez, Shield No. 8533, and John Does #1-4, were at all relevant times police officers of the NYPD, and as such were acting in the capacity of agent, servant and employee of the City of New York. On information and belief, defendants Ramirez and John Does #1-4, were involved in the illegal arrest of plaintiff and/or the use of excessive force against

plaintiff, and/or failed to intervene in the actions of their fellow officers. Defendants Ramirez and John Does #1-4 are sued in their individual capacities.

10. John Does #1-4, individuals whose names are currently unknown to plaintiff, are employees of the NYPD, and are sued in their individual capacities. John Does #1-4 are the NYPD officers who participated in the arrest of and assault of plaintiff described herein.

11. At all times here mentioned defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York

FACTUAL ALLEGATIONS

12. On April 9, 2021 Plaintiff was located at 1139 Flatbush Avenue in Brooklyn NY.

13. Plaintiff was not committing any crime, nor was there reasonable suspicion or probable cause to believe he had committed any crime.

14. At approximately 11:00 pm defendants Ramirez and John Does #1-4 approached Plaintiff.

15. Defendants Ramirez and John Does #1-4 seized Plaintiff and took him into custody.

16. Defendants Ramirez and John Does #1-4 assaulted and battered Plaintiff and used excessive and unnecessary force while arresting Plaintiff.

17. Plaintiff did not resist or attempt to resist the officers.

18. Plaintiff did not strike nor attempt to strike any officer.

19. Plaintiff was taken to Kings County hospital by defendants.

20. Plaintiff was released from custody at Kings County Hospital.

21. Plaintiff was never charged with any crime related to this incident.

22. Plaintiff suffered a displaced fracture of the humerus in his left arm as well as injuries to

his lumber and cervical spine and various other injuries to various parts of his body.

23. As a direct and proximate result of the malicious and outrageous conduct of Defendants set forth, Plaintiff suffered injuries and damages.

DAMAGES

24. As a direct and proximate result of the acts of defendants, plaintiff suffered the following injuries and damages:

- a. Violation of his right to Due Process of Law under the Fourteenth Amendment to the United States Constitution;
- b. Violation of his rights under the Fourth Amendment to the United States Constitution to be free unreasonable search and seizure;
- c. Physical injuries including severe neck and back injuries;
- d. Physical pain and suffering;
- e. Loss of Liberty;
- f. Emotional distress, including fear, embarrassment, frustration, extreme inconvenience, and anxiety.

FIRST CAUSE OF ACTION

(42 U.S.C. § 1983 – as to Individual Defendants)

25. The above paragraphs are here incorporated by reference.

26. Defendants have deprived Plaintiff of his civil, constitutional and statutory rights under color of law and have conspired to deprive him of such rights and are liable to Plaintiff under 42 USC § 1983.

27. Defendants' conduct deprived Plaintiff of his right to be free of unreasonable searches and seizures, pursuant to the Fourth and Fourteenth Amendments to the United States Constitution.

28. Defendants falsely arrested Plaintiff in violation of his rights under the Fourth and

Fourteenth Amendments.

29. Defendants used excessive and unnecessary force against Plaintiff in violation of his rights under the Fourth and Fourteenth Amendments.

30. Defendants failed to intervene in each other's obviously illegal actions.

31. Plaintiff has been damaged as a result of defendants' wrongful acts.

SECOND CAUSE OF ACTION
(False Arrest – as to Individual Defendants)

32. The above paragraphs are here incorporated by reference

33. Defendants subjected plaintiff to false arrest, false imprisonment, and deprivation of liberty without probable cause.

34. Defendants intended to confine plaintiff and in fact confined him.

35. Plaintiff was conscious of the confinement and did not consent to it.

36. The confinement was not privileged.

37. Plaintiff was damaged by his false arrest.

THIRD CAUSE OF ACTION
(Assault – As to Individual Defendants)

38. The above paragraphs are here incorporated by reference.

39. Defendants made plaintiff fear for his physical well-being and safety and placed him in apprehension of immediate harmful and/or offensive touching.

40. Defendants have deprived plaintiff of his civil, constitutional and statutory rights and have conspired to deprive him of such rights and are liable to plaintiff under common law, and the laws and Constitution of New York State.

41. Plaintiff was damaged by defendants' assault.

FOURTH CAUSE OF ACTION
(Battery – As to Individual Defendants)

42. The above paragraphs are here incorporated by reference.

43. Defendants engaged in and subjected plaintiff to immediate harmful and/or offensive touching and battered them.

44. Defendants used excessive and unnecessary force with plaintiff.

45. Defendants have deprived plaintiff of his civil, constitutional and statutory rights and have conspired to deprive him of such rights and are liable to plaintiff under common law, and the New York State Constitution.

46. Plaintiff was damaged by defendants' battery

FIFTH CAUSE OF ACTION
(Respondeat Superior – As to City of New York)

47. The above paragraphs are here incorporated by reference.

48. The defendants' tortious acts were undertaken within the scope of their employment by Defendant City of New York and in furtherance of the Defendant City of New York's interest.

49. As a result of defendants' tortious conduct in the course of their employment and in furtherance of the business of Defendant City of New York, Plaintiff was damaged.

REQUEST FOR RELIEF

WHEREFORE, Plaintiff respectfully requests that judgment be entered as follows: Plaintiff demands compensatory and punitive damages, in the amount not to exceed jurisdictional limits, for each of the above-stated causes of action against all Defendants; together with costs and disbursements of this action and legal fees pursuant to 42 U.S.C. § 1988; and such other and further relief as this Court may deem just and proper, including injunctive and declaratory relief.

Dated: New York, New York
August 23, 2021

Yours, etc.
LIAKAS LAW, P.C.

By: 

Nicholas Mindicino, ESQ.
Attorneys for Plaintiff
65 Broadway, 13th Floor
New York, New York 10006
(212) 937-7765

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Defendants

LIAKAS LAW, P.C.
Attorneys for Plaintiff(s)
65 Broadway - 13th Floor
New York, New York 10006
212-937-7765

SUMMONS and VERIFIED COMPLAINT

STATE OF NEW YORK, COUNTY OF NEW YORK, SS:

Nicholas Mindicino, the undersigned, an attorney admitted to practice in the Courts of New York State, affirms the following:

I further certify that my signature below acts as a "certification" for the documents attached hereto, in compliance with section 130-1.1-a of the Rules of the Chief Administrator (22 NYCRR).

Dated: New York, New York
August 23, 2021



Nicholas Mindicino, ESQ.

PLEASE TAKE NOTICE

- () that the within is a (certified) true copy of a Notice of _____ entered in the Office of the clerk of the within Entry named Court on _____
- () that an Order of which the within is a true copy will be presented for Notice of settlement to the Hon. _____ one of the Judges of the Settlement within named Court, on _____, at _____
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